

Opinion of the Court

District Court for the Western District of Texas. Among other claims, they sought recovery of damages under *Bivens*, alleging that Mesa violated Hernández’s Fourth and Fifth Amendment rights. The District Court granted Mesa’s motion to dismiss, and the Court of Appeals for the Fifth Circuit sitting en banc has twice affirmed this dismissal.

On the first occasion, the court held that Hernández was not entitled to Fourth Amendment protection because he was “a Mexican citizen who had no ‘significant voluntary connection’ to the United States” and “was on Mexican soil at the time he was shot.” *Hernandez v. United States*, 785 F. 3d 117, 119 (CA5 2015) (*per curiam*). It further concluded that Mesa was entitled to qualified immunity on petitioners’ Fifth Amendment claim. *Id.*, at 120.

After granting review, we vacated the Fifth Circuit’s decision and remanded the case, instructing the court “to consider how the reasoning and analysis” of *Ziglar v. Abbasi*, 582 U. S. 120 (2017), our most recent explication of *Bivens*, “[might] bear on this case.” *Hernández*, 582 U. S., at 553. We found it “appropriate for the Court of Appeals, rather than this Court, to address the *Bivens* question in the first instance.” *Ibid.* And with the *Bivens* issue unresolved, we thought it “imprudent” to resolve the “sensitive” question whether the Fourth Amendment applies to a cross-border shooting. 582 U. S., at 554. In addition, while rejecting the ground on which the Court of Appeals had held that Agent Mesa was entitled to qualified immunity, we declined to decide whether he was entitled to qualified immunity on a different ground or whether petitioners’ claim was cognizable under the Fifth Amendment. *Id.*, at 554–555.

On remand, the en banc Fifth Circuit evaluated petitioners’ case in light of *Abbasi* and refused to recognize a *Bivens* claim for a cross-border shooting. 885 F. 3d 811 (2018). The court reasoned that such an incident presents a “‘new context’” and that multiple factors—including the incident’s relationship to foreign affairs and national security, the ex-